

The Crime of War

The moral reality of war is divided into two parts. War is always judged twice, first with reference to the reasons states have for fighting, secondly with reference to the means they adopt. The first kind of judgment is adjectival in character: we say that a particular war is just or unjust. The second is adverbial: we say that the war is being fought justly or unjustly. Medieval writers made the difference a matter of prepositions, distinguishing *jus ad bellum*, the justice of war, from *jus in bello*, justice in war. These grammatical distinctions point to deep issues. *Jus ad bellum* requires us to make judgments about aggression and self-defense; *jus in bello* about the observance or violation of the customary and positive rules of engagement. The two sorts of judgment are logically independent. It is perfectly possible for a just war to be fought unjustly and for an unjust war to be fought in strict accordance with the rules. But this independence, though our views of particular wars often conform to its terms, is nevertheless puzzling. It is a crime to commit aggression, but aggressive war is a rule-governed activity. It is right to resist aggression, but the resistance is subject to moral (and legal) restraint. The dualism of *jus ad bellum* and *jus in bello* is at the heart of all that is most problematic in the moral reality of war.

It is my purpose to see war whole, but since its dualism is the essential feature of its wholeness, I must begin by accounting for the parts. In this chapter, I want to suggest what we mean when we say that it is a crime to begin a war, and in the next I will try

to explain why it is that there are rules of engagement that apply even to soldiers whose wars are criminal. This chapter introduces Part Two, where I will examine in detail the nature of the crime, describe the appropriate forms of resistance, and consider the ends that soldiers and statesmen may legitimately seek in fighting just wars. The next chapter introduces Part Three, where I will discuss the legitimate means of warfare, the substantive rules, and show how these rules apply in combat conditions and how they are modified by “military necessity.” Only then will it be possible to confront the tension between ends and means, *jus ad bellum* and *jus in bello*.

I am not sure whether the moral reality of war is wholly coherent, but for the moment I need not say anything about that. It’s enough that it has a recognizable and relatively stable shape, that its parts are connected and disconnected in recognizable and relatively stable ways. We have made it so, not arbitrarily, but for good reasons. It reflects our understanding of states and soldiers, the protagonists of war, and of combat, its central experience. The terms of that understanding are my immediate subject matter. They are simultaneously the historical product of and the necessary condition for the critical judgments that we make every day; they fix the nature of war as a moral (and an immoral) enterprise.

The Logic of War

Why is it wrong to begin a war? We know the answer all too well. People get killed, and often in large numbers. *War is hell*. But it is necessary to say more than that, for our ideas about war in general and about the conduct of soldiers depend very much on how people get killed and on who those people are. Then, perhaps, the best way to describe the crime of war is simply to say that there are no limits at either of these points: people are killed with every conceivable brutality, and all sorts of people, without distinction of age or sex or moral condition, are killed. This view of war is brilliantly summed up in the first chapter of Karl von Clausewitz’s *On War*, and though there is no evidence that Clausewitz thought war a crime, he has certainly led other people to think so. It is his early definitions (rather than his later qualifica-

The Crime of War

tions) that have shaped the ideas of his successors, and so it is worth considering them in some detail.

The Argument of Karl von Clausewitz

"War is an act of force," Clausewitz writes, ". . . which theoretically can have no limits."¹ The idea of war carries with it for him the idea of limitlessness, whatever actual restraints are observed in this or that society. If we imagine a war fought, as it were, in a social vacuum, unaffected by "accidental" factors, it would be fought with no restraint at all in the weapons used, the tactics adopted, the people attacked, or anywhere else. For military conduct knows no intrinsic limits; nor is it possible to refine our notions of war so as to incorporate those extrinsic moral codes that Clausewitz sometimes calls "philanthropic." "We can never introduce a modifying principle into the philosophy of war without committing an absurdity." The more extreme the battle is, then, the more general and intense the violence employed on one side and the other, the closer to war in the conceptual sense ("absolute war") it is. And there can be no imaginable act of violence, however treacherous or cruel, that falls outside of war, that is not-war, for the logic of war simply is a steady thrust toward moral extremity. That is why it is so awful (though Clausewitz does not tell us this) to set the process going: the aggressor is responsible for all the consequences of the fighting he begins. In particular cases, it may not be possible to know these consequences in advance, but they are always potentially terrible. "When you resorted to force," General Eisenhower once said, ". . . you didn't know where you were going . . . If you got deeper and deeper, there was just no limit except . . . the limitations of force itself."²

The logic of war, according to Clausewitz, works in this way: "each of the adversaries forces the hand of the other." What results is a "reciprocal action," a continuous escalation, in which neither side is guilty even if it acts first, since every act can be called and almost certainly is pre-emptive. "War tends toward the utmost exertion of forces," and that means toward increasing ruthlessness, since "the ruthless user of force who shrinks from no amount of bloodshed must gain an advantage if his opponent does not do the same."³ And so his opponent, driven by what Thucydides and Hobbes call "a necessity of nature," does the same, matching the ruthlessness of the other side whenever he can. But this description, though it is a useful account of how escalation

works, is open to the criticism that I have already made. As soon as we focus on some concrete case of military and moral decision-making, we enter a world that is governed not by abstract tendencies but by human choice. The actual pressures toward escalation are greater here, less there, rarely so overwhelming as to leave no room for maneuver. Wars no doubt are often escalated, but they are also (sometimes) fought at fairly steady levels of violence and brutality, and these levels are (sometimes) fairly low.

Clausewitz grants this, though without surrendering his commitment to the absolute. War, he writes, "may be a thing which is sometimes war in a greater, sometimes in a lesser degree." And again, "There can be wars of all degrees of importance and energy, from a war of extermination down to a mere state of armed observation."⁴ Somewhere between these two, I suppose, we begin to say, all's fair, anything goes, and so on. When we talk that way, we are not referring to the general limitlessness of war, but to particular escalations, particular acts of force. No one has ever experienced "absolute war." In this or that struggle, we endure (or commit) this or that brutality, which can always be described in concrete terms. It is the same with hell: I cannot conceptualize infinite pain without thinking of whips and scorpions, hot irons, other people. Now, what is it that we think about when we say, war is hell? What aspects of warfare lead us to regard its initiation as a criminal act?

The same questions can be introduced in another way. War is not usefully described as an act of force without some specification of the context in which the act takes place and from which it derives its meaning. Here the case is the same as with other human activities (politics and commerce, for example): it's not what people do, the physical motions they go through, that are crucial, but the institutions, practices, conventions that they make. Hence the social and historical conditions that "modify" war are not to be considered as accidental or external to war itself, for war is a social creation. At particular points in time, it takes shape in particular ways, and sometimes at least in ways that resist the "utmost exertion of forces." What is war and what is not-war is in fact something that people decide (I don't mean by taking a vote). As both anthropological and historical accounts suggest, they can decide, and in a considerable variety of cultural settings they have decided, that war is limited war—that is, they have built certain notions about who can fight, what tactics are acceptable, when battle has to be broken off, and what prerogatives go with victory

The Crime of War

into the idea of war itself.* Limited war is always specific to a time and place, but so is every escalation, including the escalation beyond which war is hell.

The Limit of Consent

Some wars are not hell, and it will be best to begin with them. The first and most obvious example is the competitive struggle of aristocratic young men, a tournament on a larger scale and with no presiding officer in the stands. Examples can be found in Africa, ancient Greece, Japan, and feudal Europe. Here is a “contention by arms” that has often captured the imagination, not only of children, but also of romantic adults. John Ruskin made it his own ideal: “creative or foundational war is that in which the natural restlessness and love of contest are disciplined, by consent, into modes of beautiful—though it may be fatal—play . . .”⁶ Creative war may not be terribly bloody, but that is not the crucial thing about it. I have read accounts of tournaments that make them sound brutal enough, but no such account would lead anyone to say that it was a crime to organize a tournament. What rules out such a claim, I think, is Ruskin’s phrase “by consent.” His beautiful aristocrats do what they choose to do, and that is why no poet ever described their deaths in terms comparable to those of Wilfred Owen writing of infantrymen in World War I:⁶

What passing-bells for these who die as cattle?

* This, of course, is exactly what Clausewitz wants to deny. In technical terms, he is arguing that war is never an activity constituted by its rules. War is never like a duel. The social practise of duelling includes and accounts for only those acts of violence specified in the rulebook or the customary code. If I wound my opponent, shoot his second, and then beat him to death with a stick, I am not duelling with him; I am murdering him. But similar brutalities in war, though they violate the rules, are still regarded as acts of war (war crimes). Hence there is a formal or linguistic sense in which military action is limitless, and this has undoubtedly influenced our understanding of such action. At the same time, however, “war” and related words are at least sometimes used in a more restrictive sense, as in the famous speech of Sir Henry Campbell-Bannerman, one of the leaders of the Liberal Party in Britain during the Boer War: “When is war not war? When it is fought by methods of barbarism . . .” We do still refer to the Boer War, but the argument is not idiosyncratic. I will provide other examples later on.

"To the youths who voluntarily adopt it as their profession," writes Ruskin, "[war] has always been a grand pastime . . ." We take their choice as a sign that what they are choosing cannot be awful, even if it looks that way to us. Perhaps they ennoble the brutal melee; perhaps not; but if this kind of war were hellish, these well-born young men would be doing something else.*

A similar argument can be made whenever fighting is voluntary. Nor does it matter a great deal if the men involved don't choose to fight, so long as they can choose to break off fighting without dire consequences. In certain primitive societies, whole age cohorts of young males go off to battle; individuals cannot avoid combat without exposing themselves to dishonor and ostracism. But there is no effective social pressure or military discipline on the battlefield itself. And then there takes place, as Hobbes says, "on both sides a running away."⁷ When running away is acceptable, as it often is in primitive warfare, battles will obviously be short and casualties few. There is nothing that resembles "the utmost exertion of forces." Those men who don't run away, but stand and fight, do so not because of the necessities of their case, but freely, as a matter of choice. They seek out the excitement of battle, perhaps because they enjoy it, and their subsequent fate, even if it is very painful, can't be called unjust.

The case of mercenaries and professional soldiers is more complex and needs to be examined with some care. In Renaissance Italy, wars were fought by mercenary soldiers recruited by the great *condottieri*, partly as a business venture, partly as a political speculation. City-states and principalities had to rely on such men because the political culture of the time did not allow for effective coercion. There were no conscript armies. The result was warfare of a very limited sort, since recruits were expensive and each army represented a considerable capital investment. Battle became a matter largely of tactical maneuver; physical confrontation was rare; relatively few soldiers were killed. Wars had to be won, as two of the *condottieri* wrote, "rather by industry and cunning than by actual clash of arms."⁸ Thus the great defeat of the Florentines at Zagonara: "no deaths occurred [in the battle]," Machiavelli tells us, "except those of Lodovico degli Obizi and two of his men, who, having fallen from their horses, were drowned in the mud."⁹ But,

* We can glimpse the mood of the happy warrior in a letter that Rupert Brooke wrote to a friend at the very beginning of World War I, before he knew what it would be like: "Come and die. It'll be great fun." (Quoted in Malcolm Cowley, *A Second Flowering*, New York, 1974, p. 6.)

The Crime of War

once again, I don't want to stress the limited character of the fighting but something prior to that, from which the limits follow: a certain sort of freedom in choosing war. Mercenary soldiers signed up on terms, and if they could not actually choose their campaigns and tactics, they could to some degree fix the cost of their services and so condition the choices of their leaders. Given that freedom, they might have fought very bloody battles and the spectacle would not lead us to say that war was a crime. A fight between mercenary armies is undoubtedly a bad way of settling political disputes, but we judge it bad for the sake of the people whose fate is being settled, not for the sake of the soldiers themselves.

Our judgments are very different, however, if the mercenary armies are recruited (as they most often are) from among desperately impoverished men, who can find no other way of feeding themselves and their families except by signing up. Ruskin makes this point well when he tells his aristocratic warriors: "Remember, whatever virtue and goodliness there may be in this game of war, rightly played, there is none when you . . . play it with a multitude of small human pawns . . . [when you] urge your peasant millions into gladiatorial war . . ." ¹⁰ Then battle becomes a "circus of slaughter" in the midst of which no consensual discipline is possible, and those who die do so without ever having had a chance to live in another way. Hell is the right name for the risks they never chose and the agony and death they endure; the men responsible for that agony are rightly called criminals.

Mercenaries are professional soldiers who sell their services on the open market, but there are other professionals who serve only their own prince or people and, though they may earn their bread by soldiering, disdain the name of mercenary. "We're either officers who serve their Tsar and country," says Prince Andrey in *War and Peace*, "and rejoice in the success and grieve at the defeat of the common cause, or we're hirelings who have no interest in our master's business." ¹¹ The distinction is too gross; in fact there are intermediate positions; but the more a soldier fights because he is committed to a "common cause," the more likely we are to regard it as a crime to force him to fight. We assume that his commitment is to the safety of his country, that he fights only when it is threatened, and that then he has to fight (he has been "put to it"): it is his duty and not a free choice. He is like a doctor who risks his life during an epidemic, using professional skills he chose to acquire but whose acquisition is not a sign that he hopes for epidemics. On the other hand, professional soldiers

are sometimes exactly like those aristocratic warriors who relish battle, driven more by a lust for victory than by patriotic conviction, and then we may well be unmoved by their deaths. At least we will not say, they would not want us to say, what Owen says of his comrades in the trenches, that "one dies of war like any old disease."¹² They died instead of their own free will.

War is hell whenever men are forced to fight, whenever the limit of consent is breached. That means, of course, that it is hell most of the time; throughout most of recorded history, there have been political organizations capable of marshalling armies and driving soldiers into battle. It is the absence of political discipline or its ineffectiveness in detail that opens the way for "creative war." The examples I have given are best understood as limiting cases, establishing the boundaries of hell. We ourselves are old inhabitants—even if we live in democratic states where the government that decides to fight or not to fight is popularly elected. For I am not considering now the legitimacy of that government. Nor am I immediately interested in the willingness of a potential soldier to vote for a war he has been led to believe is necessary or to volunteer for it. What is important here is the extent to which war (as a profession) or combat (at this or that moment in time) is a personal choice that the soldier makes on his own and for essentially private reasons. That kind of choosing effectively disappears as soon as fighting becomes a legal obligation and a patriotic duty. Then "the waste of the life of the combatants is one which," as the philosopher T. H. Green has written, "the power of the state compels. This is equally true whether the army is raised by voluntary enlistment or by conscription."* For the state decrees that an army of a certain size be raised, and it sets out to find the necessary men, using all the techniques of coercion and persuasion at its disposal. And the men it finds, precisely because they go to war under constraint or as a matter of conscience, can no longer mod-

* Green is arguing against the proposition I have hitherto maintained: that no wrong is done in war if "the persons killed are voluntary combatants." He denies this on the grounds that a soldier's life is not merely his own. "The individual's right to life is but the other side of the right which society has in his living." But that, it seems to me, is only true in certain sorts of societies; it is hardly an argument that could have been made to a feudal warrior. Green goes on to argue, more plausibly, that in his own society it makes little sense to talk of soldiers fighting voluntarily: war is now a state action. The chapter on "The Right of the State over the Individual in War" in Green's *Principles of Political Obligation*, provides an especially clear description of the ways in which moral responsibility is mediated in the modern state; I have relied on it often in this and later chapters.

The Crime of War

erate their battles; the battles are no longer theirs. They are political instruments, they obey orders, and the practice of war is shaped at a higher level. Perhaps they really are obligated to obey orders in this or that case, but war is radically changed by the fact that they do so generally. The change is best represented for the modern period (though there are historical analogues) by the effects of conscription. "Hitherto soldiers had been costly, now they were cheap; battles had been avoided, now they were sought, and however heavy were the losses, they could rapidly be made good by the muster-roll."¹³

Napoleon is said to have boasted to Metternich that he could afford to lose 30,000 men a month. Perhaps he could have lost that many and still have maintained political support at home. But he could not have done so, I think, had he had to ask the men he was about to "lose." Soldiers might agree to such losses in a war forced upon them by the enemy, a war of national defense, but not in the sorts of wars that Napoleon fought. The need to seek their consent (whatever the form in which it was sought and given or not given) would surely limit the occasions of war, and if there were any chance at all of reciprocity from the other side, it would limit its means too. This is the sort of consent I have in mind. Political self-determination is not, judging from twentieth century history, an adequate substitute, though it isn't easy to think of one that would be better. In any case, it is when individual consent fails that "acts of force" lose whatever appeal they previously had and become the constant object of moral condemnation. And after that, war also tends to escalate in its means, not necessarily beyond all limits, but certainly beyond those limits that ordinary humanity, as free of political loyalty as of political constraint, would establish if it could.

The Tyranny of War

War is most often a form of tyranny. It is best described by paraphrasing Trotsky's aphorism about the dialectic: "You may not be interested in war, but war is interested in you." The stakes are high, and the interest that military organizations take in an individual who would prefer to be somewhere else, doing something

else, is frightening indeed. Hence the peculiar horror of war: it is a social practice in which force is used by and against men as loyal or constrained members of states and not as individuals who choose their own enterprises and activities. When we say, war is hell, it is the victims of the fighting that we have in mind. In fact, then, war is the very opposite of hell in the theological sense, and is hellish only when the opposition is strict. For in hell, presumably, only those people suffer who deserve to suffer, who have chosen activities for which punishment is the appropriate divine response, knowing that this is so. But the greater number by far of those who suffer in war have made no comparable choice.

I do not mean to call them “innocent.” That word has come to have a special meaning in our moral discourse. It doesn’t refer there to the participants but to the bystanders of battle, and so the class of innocent men and women is only a subset (though it is often a frighteningly large subset) of all those in whom war takes an interest without asking their consent. The rules of war by and large protect only the subset, for reasons I will have to consider later on. But war is hell even when the rules are observed, even when only soldiers are killed and civilians are consistently spared. Surely no experience of modern warfare has etched its horror so deeply in our minds as the fighting in the trenches of World War I—and in the trenches civilian lives were rarely at risk. The distinction of combatants and bystanders is enormously important in the theory of war, but our first and most fundamental moral judgment does not depend upon it. For in one sense at least, soldiers in battle and nonparticipating civilians are not so different: the soldiers would almost certainly be nonparticipants if they could.

The tyranny of war is often described as if war itself were the tyrant, a natural force like flood or famine or, personified, a brutal giant stalking his human prey, as in these lines from a poem by Thomas Sackville:¹⁴

Lastly stood War, in glittering arms y-clad,
With visage grim, stern looks, and blackly hued;
In his right hand a naked sword he had
That to the hilts was all with blood embrued,
And in his left (that kings and kingdoms rued)
Famine and fire he held, and therewithal
He razed towns, and threw down towers and all.

Here is the Grim Reaper in uniform, armed with a sword instead of a scythe. The poetic image enters also into moral and political thought, but only, I think, as a kind of ideology, obscuring our

The Crime of War

critical judgment. For it is a piece of mystification to represent tyrannical power as an abstract Force. In battle as in politics, tyranny is always a relation among persons or groups of persons. The tyranny of war is a peculiarly complex relation because coercion is common on both sides. Sometimes, however, it is possible to distinguish the sides and to identify the statesmen and soldiers who first took the naked sword to hand. Wars are not self-starting. They may "break out," like an accidental fire, under conditions difficult to analyze and where the attribution of responsibility seems impossible. But usually they are more like arson than accident: war has human agents as well as human victims.

Those agents, when we can identify them, are properly called criminals. Their moral character is determined by the moral reality of the activity they force others to engage in (whether or not they engage in it themselves). They are responsible for the pain and death that follow from their decisions, or at least for the pain and death of all those persons who do not choose war as a personal enterprise. In contemporary international law, their crime is called aggression, and I will consider it later on under that name. But we can understand it initially as the exercise of tyrannical power, first over their own people and then, through the mediation of the opposing state's recruitment and conscription offices, over the people they have attacked. Now, tyranny of this sort rarely encounters domestic resistance. Sometimes the war is opposed by local political forces, but the opposition almost never extends to the actual exercise of military power. Though mutinies are common in the long history of war, they are more like peasant *jacqueries*, quickly and bloodily suppressed, than revolutionary struggles. Most often, real opposition comes only from the enemy. It is the men and women on the other side who are most likely to recognize and resent the tyranny of war; and whenever they do that, the contest takes on a new significance.

When soldiers believe themselves to be fighting against aggression, war is no longer a condition to be endured. It is a crime they can resist—though they must suffer its effects in order to resist it—and they can hope for a victory that is something more than an escape from the immediate brutality of battle. The experience of war as hell generates what might be called a higher ambition: one doesn't aim to settle with the enemy but to defeat and punish him and, if not to abolish the tyranny of war, at least to reduce the probability of future oppression. And once one is fighting for purposes of this sort, it becomes terribly important to win. The

conviction that victory is morally critical plays an important part in the so-called "logic of war." We don't call war hell because it is fought without restraint. It is more nearly right to say that, when certain restraints are passed, the hellishness of war drives us to break with every remaining restraint in order to win. Here is the ultimate tyranny: those who resist aggression are forced to imitate, and perhaps even to exceed, the brutality of the aggressor.

General Sherman and the Burning of Atlanta

We are now in a position to understand what Sherman had in mind when he first announced that war is hell. He wasn't merely describing the awfulness of the experience, nor was he denying the possibility of moral judgment. He made such judgments freely, and he surely thought of himself as a righteous soldier. His maxim sums up, with admirable brevity, a whole way of thinking about war—a one-sided and partial way of thinking, I shall argue, but powerful nonetheless. In his view, war is entirely and singularly the crime of those who begin it, and soldiers resisting aggression (or rebellion) can never be blamed for anything they do that brings victory closer. The sentence *War is hell* is doctrine, not description: it is a moral argument, an attempt at self-justification. Sherman was claiming to be innocent of all those actions (though they were his own actions) for which he was so severely attacked: the bombardment of Atlanta, the forced evacuation of its inhabitants and the burning of the city, the march through Georgia. When he issued the order for the evacuation and burning of Atlanta, the city's aldermen and the Confederate commander, General Hood, protested his plans: "And now, sir," wrote Hood, "permit me to say that the unprecedented measure you propose transcends, in studied and ingenious cruelty, all acts ever before brought to my attention in the dark history of war." Sherman replied that war is indeed dark. "War is cruelty and you cannot refine it."¹⁵ And therefore, he went on, "those who brought war into our country deserve all the curses and maledictions a people can pour out." But he himself deserves no curses at all. "I know I had no hand in making this war." He is only fighting it, not by choice but because he has to. He has been forced to use force, and the burning of Atlanta (so that the city could not again serve as a military depot for Confederate forces) is simply one more example of that use, one of the entailments of war. It is cruel, no doubt, but the cruelty isn't his own; it belongs, so to speak, to the men of the Confederacy: "You who, in the midst of peace and prosperity, have

The Crime of War

plunged a nation into war . . .” The Confederate leaders can easily restore peace by yielding obedience to federal law, but he can do so only by military action.

Sherman’s argument expresses the anger that is commonly directed against those who begin a war and inflict its tyrannies on the rest of us. We disagree, of course, when it comes to giving the tyrants a proper name. But that disagreement is intense and heated only because we agree on the moral stakes. What is at issue is responsibility for death and destruction, and Sherman is by no means the only general to take a lively interest in such matters. Nor is he the only general to think that if his cause is just he cannot be blamed for the death and destruction he spreads around him—for war is hell.

It is the Clausewitzian idea of limitlessness that is at work here, and if that idea is right, there would indeed be no response to Sherman’s argument. But the tyranny of war is no more limitless than is political tyranny. Just as we can charge a tyrant with particular crimes over and above the crime of ruling without consent, so we can recognize and condemn particular criminal acts within the hell of war. When we answer the question, “Who started this war?” we have not finished distributing responsibility for the suffering that soldiers inflict. There are further arguments to make. That’s why General Sherman, though he insisted that the cruelty of war could not be refined, claimed nevertheless to be refining it. “God will judge . . .,” he wrote, “whether it be more humane to fight with a town full of women [and children] at our back or to remove them in time to places of safety among their own friends and people.” This is another kind of justification; and whether or not it is made in good faith, it suggests (what is certainly true) that Sherman had some responsibility for the people of Atlanta, even though he did not begin the war of which they were victims. When we focus exclusively on the fact of aggression, we are likely to lose sight of that responsibility and to talk as if there were only one morally relevant decision to be made in the course of a war: to attack or not to attack (to resist or not to resist). Sherman wants to judge war only at its outermost boundaries. But there is a great deal to be said about its interior regions, as he himself admits. Even in hell, it is possible to be more or less humane, to fight with or without restraint. We must try to understand how this can be so.